

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
June 25, 2026
8:30 a.m./1:30 p.m.

3. CURTIS CHRISTENSEN V. GINA CHRISTENSEN

PFL20170845

On March 30, 2026, Respondent filed a Request for Order (RFO) seeking to quash subpoenas. The RFO was served on April 3rd, a blank FL-320 was not served nor was the Notice of Posting Tentative Ruling.

Petitioner filed his Responsive Declaration to Request for Order and a declaration of Amanda Yasbek in support thereof on June 8th. He filed his Income and Expense Declaration concurrently therewith. All documents were served on June 5th.

Respondent filed and served her Income and Expense Declaration on June 15th. She filed another declaration on June 17th.

Petitioner filed an Objection to Respondent's Declaration and Request to Strike Pleading on June 22nd. Petitioner objects to Respondent's June 17th declaration as it is in violation of the 5-page limit set by California Rule of Court rule 5.111(a).

Neither party has served the Department of Child Support Services (DCSS) with any of the moving or opposition papers. DCSS is a party to the case and therefore, they are to be included. Accordingly, the matter is dropped from calendar due to lack of proper service. Even if the court had reached the matter on the merits, it would be denied for the reasons stated below.

Respondent asks the court to quash the following deposition subpoenas: Kaiser Permanente (HR and payroll records); Golden 1 Credit Union/Fidelity; and Vanguard Group. She asks the court to issue a protective order preventing the disclosure of her private financial and employment records. Finally, she asks that the court award sanctions in the amount of \$1,000. She argues the subpoenas are overbroad and duplicative as Petitioner already has the necessary information.

Petitioner asks the court to deny the Motion to Quash as Respondent's objection was untimely, Respondent improperly signed and served the objection, and Petitioner is already in possession of the requested documents. He further opposes the request for a protective order as the subpoenas have not been oppressive, unduly burdensome, or a violation of privacy rights. Petitioner is requesting \$5,000 in attorney fees pursuant to Family Code § 7605 and Civil Procedure § 1987.2(a). He also requests \$2,000 in sanctions pursuant to Family Code § 271.

Civil Procedure Section 1987.1 vests the court with the authority to either quash a deposition subpoena in its entirety or to modify it. Cal. Civ. Pro. § 1987.1(a). Additionally,

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the court may make protective orders or any other orders as the court deems reasonably necessary to protect the moving party from “...unreasonable or oppressive demands...” *Id.* While a motion to quash must be served at least five days before the date set for production of records, failure to timely serve the motion does not invalidate it. Cal. Civ. Pro. § 1985.3.

First and foremost, Petitioner objects to the motion to quash as untimely. However, as stated above, mere untimeliness does not invalidate the motion or prevent the court from ruling on it. Thus, the court does not find this argument to be persuasive.

Petitioner further objects as Respondent improperly noted the objection as a non-party and signed the Proof of Service of the objection herself. While this is true, the court does find that Petitioner received the objection and responded to it substantively therefore, the court finds that Petitioner had actual notice of the objection being made and as such, the procedural deficiencies were harmless error.

Turning to the substance of the motion, the motion should be denied in its entirety. In filing a motion to quash or seeking a protective order, the moving party bears the burden of establishing that the subpoenas are unreasonable, oppressive, or objectionable in some way. Respondent argues that the subpoenas are overbroad and not reasonably calculated to lead to the discovery of admissible evidence, though she does not so much as attach a copy of the subject subpoenas or cite the language used in the subpoena to make a showing that it is objectionable. Furthermore, she is seeking to quash subpoenas to Kaiser Permanente, Golden 1/Fidelity and Vanguard Group but as far as the court can tell from the filings the only subpoena actually outstanding at the time of the filing was the Golden 1 subpoena and even that had been fulfilled prior to hearing on the motion.

Respondent repeatedly argues that the subpoenas are duplicative and unnecessary because she has already provided the requested documentation. This argument is without merit. In conducting discovery, each “party is permitted to use multiple methods of obtaining discovery and the fact that information was disclosed under one method is not, standing alone, proper basis for refusing to provide discovery under another method.” Irvington-Moore, Inc. v. Sup. Ct. 14 Cal. App. 4th 733 (1993).

Ultimately, Respondent has failed to establish that the subpoenas (assuming there is more than one) are overbroad, unreasonable, oppressive or otherwise objectionable. Her requests to quash the subpoenas and issue a protective order should therefore be denied.

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“[T]he court may, in its discretion award the amount of reasonable expenses incurred in making or opposing the motion, including reasonable attorney’s fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive.” Cal. Civ. Pro. § 1987.2.

Respondent is cautioned that if the court were to have reached the matter on its merits, her actions likely would be sanctionable as the court does not find that the motion was filed with substantial justification. Respondent’s argument that the information was already disclosed was made without any legal basis. The court recognizes that Respondent is pro per, yet a pro per party is held to the same standard as a practicing attorney. See Goodson v. Bogerts, Inc., 252 Cal. App. 2d 32, 40 (1967) (“One who voluntarily represents himself is not, for that reason, entitled to any more (or less) consideration than a lawyer.”) Furthermore, the requested information is directly relevant to the subject matter at hand and Respondent failed to make the required showing that the subpoenas are objectionable.

TENTATIVE RULING #3: THIS MATTER IS DROPPED FROM CALENDAR DUE TO LACK OF PROPER SERVICE TO DCSS. EVEN IF THE COURT HAD REACHED THE MATTER ON THE MERITS IT WOULD HAVE BEEN DENIED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.